

Whangarei District Council Meeting Minutes

Date: Thursday, 28 September, 2023
Time: 9:00 a.m.
Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Phil Halse
Cr Deborah Harding (Teams)
Cr Patrick Holmes (Teams)
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

Not in Attendance Cr Jayne Golightly

Scribe N. Pestana (Team Leader, Democracy)

1. Karakia/Prayer

Cr Phoenix Ruka opened the meeting with a karakia.

2. Declarations of Interest / Take Whaipānga

Items 1.4 and 1.5 – Deed of Guarantee and Indemnity Exit Request.

3. Apologies / Kore Tae Mai

Cr Jayne Golightly (absent) and Cr Deb Harding (late arrival).

Moved By Cr Phil Halse

Seconded By Cr Paul Yovich

That the apologies be sustained.

Carried

Cr Marie Olsen requested her vote against be recorded.

4. Public Forum / Huihuinga-a-tangata

Damian Paul Wojcik - Water fluoridation and health effects of fluoride.
 Clare Swinney – Presented petition to stop water fluoridation in Whangarei.
 Graham Milne - Ongoing access difficulties for residents accessing their properties on Taiwa Road, Ohawini Bay.

5. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting 24 August 2023

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That the minutes of the Whangarei District Council meeting held on Thursday 24 August 2023, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

5.2 Minutes Whangarei District Council Extraordinary Meeting held on 12 September 2023

Moved By Cr Nicholas Connop

Seconded By Cr Phoenix Ruka

That the minutes of the Extraordinary Whangarei District Council meeting held on Tuesday, 12 September 2023, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. Decision Reports / Whakatau Ripoata

6.1 Insurance Policy and Framework 2023-2027

Moved By His Worship the Mayor

Seconded By Cr Carol Peters

That the Council adopts the insurance policy and notes the associated framework 2023- 2027

Carried

6.2 Representation Arrangements for 2025 Local Government Elections

Moved By His Worship the Mayor

Seconded By Cr Carol Peters

That the Council confirms the current representation arrangements, as detailed in the Local Government Commission (LGC) determination for the 2022 elections, for the 2025 local government elections.

Carried

6.3 Adoption of the Waste Minimisation and Management Plan 2023

Moved By Cr Nicholas Connop

Seconded By Cr Scott McKenzie

That Council adopts the Waste Management and Minimisation Plan 2023 as attached to the agenda report.

Carried

6.4 Appointments to Sport Northland Advisory Committees

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

1. That the Council appoints Councillor Phoenix Ruka and Councillor Patrick Holmes to the Sport Northland Whangarei Aquatics Advisory Committee.
2. That the Council appoints Councillor Phoenix Ruka and Councillor Patrick Holmes to the Sport Northland Kensington Stadium Advisory Committee.
3. That these Councillors provide a report back to Council at a minimum on an annual basis.

Carried

Secretarial note: Cr Ruka is no longer employed by Sport Northland. Cr Harding joined the meeting on Teams at 9.53am during discussion on Item 6.4.

6.5 Northpower Easement - Whau Valley Water Supply Reserve

Moved By Cr Simon Reid

Seconded By Cr Marie Olsen

That the Council, pursuant Section 48 of the Reserves Act 1977 (the Act),

1. Resolves that public notice of the application for easement rights over reserve land is not required in accordance with Section 48(3) of the Act; and
2. Resolves to approve the application by Northpower Limited for easement rights over Section 8 Parish of Pukenui, as set out in the attached Deed of Agreement; and
3. Authorises the Chief Executive to correct minor errors or omissions and finalise and execute the easement plan and instrument(s) in agreement with the applicant(s).

Carried

Cr Nicholas Connop requested his vote against be recorded.

6.6 Transport Choices Implementation Funding Agreement

Moved By Cr Scott McKenzie

Seconded By Cr Carol Peters

That the Council,

1. Approves the funding agreement with Waka Kotahi for the Whangarei Transport Choices Programme which includes the following works:

Recommendations a, b, c and 2 of the motion were taken in parts. Cr Halse called for divisions on recommendations a, b, c and 2 of the motion:

- a. Program 1 – WDC01 Raumanga Shared Path Extension and CBD cycle parking

Recorded	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly			
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen		X	

Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	10	3	0
Carried (10 to 3)			

b. Program 2 – WDC02 Kamo Shared Path Connections

Recorded	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly			
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen		X	
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	9	4	0
Carried (9 to 4)			

c. Program 3 – WDC03 Whangārei City Bus Improvements

Recorded	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly			
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		

Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	10	3	0
Carried (10 to 3)			

2. Approves delegation to the CE authority to sign the Transport Choices Implementation Funding Agreement from Waka Kotahi.

Recorded	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly			
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	10	3	0
Carried (10 to 3)			

6.7 CON22054 Kamo Shared Path Stage 5B - Kamo Village - Recommendation to Award

Moved By His Worship the Mayor
Seconded By Cr Nicholas Connop

That the Whangarei District Council award the contract for CON22054 Kamo Shared Path Stage 5B - Village to Ventia NZ Operations NZ Ltd for the tendered sum of \$3,738,701.41 (Three million, seven hundred

and thirty-eight thousand, seven hundred and one dollars and forty-one cents) excluding GST, subject to the Transport Choices Implementation Funding agreement for Program 2 - WDC02 Kamo Shared Path Connections being approved by Waka Kotahi.

On the motion being put Cr Connop called for a division:

Recorded	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney		X	
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly			
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen		X	
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	8	5	0
Carried (8 to 5)			

A tea break was taken from 11.11am to 11.22am following Item 6.7.

6.8 Hihiaua Consultation - formal consultation of lease to Hihiaua Cultural Centre Trust

Moved By Cr Phoenix Ruka

Seconded By Cr Carol Peters

That Council approve formal consultation of Council's proposal to grant a long-term lease to the Hihiaua Cultural Centre Trust of part of the open space land owned by WDC Parks & Recreation on the Hihiaua Peninsula to enable the development of Stage 2 of the Hihiaua Cultural Centre.

Carried

Procedural motion

Moved By Cr Ken Couper
Seconded By Cr Marie Olsen

That the motion now be put.

The procedural motion was Carried

6.9 Regional Economic Development Agency Shareholding

Moved By Cr Phil Halse
Seconded By Cr Marie Olsen

That the Council

1. Approves consultation on Whangarei District Council joining the three other Northland councils (Northland Regional Council, Kaipara District Council and Far North District Council) as a shareholder in Northland Inc., making it a joint Northland Regional Council Controlled Organisation (CCO).
2. Estimated funding over a two-year time frame within the draft 2024-2034 Long Term Plan, with proposed investment being;
 - a. year one (2024-25) \$475,000; and
 - b. year two \$587,000
3. A review of the operational process and proposed benefits to Whangarei District Council be undertaken in one and a half years, from date of implementation (including Whangarei District Council funding for future years).
4. Budgets funding through the reallocation of existing grants to Northland Inc. (\$105k in the 2022/23 financial year), and general rates increases.
5. Considers the outcomes of public consultation through the 2024-2034 Long Term Plan consultation process.

Carried

Cr's Simon Reid and Paul Yovich requested their vote against the motion be recorded.

Cr Connop requested his abstention from voting on the motion be recorded.

Amendment

Moved By Cr Simon Reid

Seconded By Cr Paul Yovich

That the Council

1. Approves consultation on Whangarei District Council joining the three other Northland councils (Northland Regional Council, Kaipara District Council and Far North District Council) as a shareholder in Northland Inc., making it a joint Northland Regional Council Controlled Organisation (CCO).
2. Estimated funding over a two-year time frame within the draft 2024-2034 Long Term Plan, with proposed investment being;
 - a. year one (2024-25) \$117,000; and
 - b. year two \$241,000
3. A review of the operational process and proposed benefits to Whangarei District Council be undertaken in one and a half years, from date of implementation (including Whangarei District Council funding for future years).
4. Budgets funding through the reallocation of existing grants to Northland Inc. (\$105k in the 2022/23 financial year), and general rates increases.
5. Considers the outcomes of public consultation through the 2024-2034 Long Term Plan consultation process.

On the amendment being put Cr Holmes called for a division:

Recorded	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney		X	
Cr Nicholas Connop		X	
Cr Ken Couper		X	
Cr Jayne Golightly			
Cr Phil Halse		X	
Cr Deborah Harding		X	
Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Marie Olsen		X	
Cr Carol Peters		X	

Cr Simon Reid	X		
Cr Phoenix Ruka		X	
Cr Paul Yovich		X	
Results	1	12	0

The amendment was lost (1 to 12)

Amendment

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the Council

1. Approves consultation on Whangarei District Council joining the three other Northland councils (Northland Regional Council, Kaipara District Council and Far North District Council) as a shareholder in Northland Inc., making it a joint Northland Regional Council Controlled Organisation (CCO).
2. Estimated funding over a two-year time frame within the draft 2024-2034 Long Term Plan, with proposed investment being;
 - a. year one (2024-25) \$200,000;
 - b. year two \$300,000; and
 - c. year three \$400,000
3. A review of the operational process and proposed benefits to Whangarei District Council be undertaken in one and a half years, from date of implementation (including Whangarei District Council funding for future years).
4. Budgets funding through the reallocation of existing grants to Northland Inc. (\$105k in the 2022/23 financial year), and general rates increases.
5. Considers the outcomes of public consultation through the 2024-2034 Long Term Plan consultation process.

The amendment was lost

6.10 Water Treatment Plants Fluoridation Contract Award

Moved By Cr Gavin Benney

Seconded By Cr Paul Yovich

That Council:

1. Does not approve an unbudgeted amount of \$3,058,857 in addition to the \$1,600,000 budgeted amount in the 2023-24

Annual Plan making a total budgeted amount of \$4,658,857 plus GST for fluoridation;

2. Notes the risk that if full funding from Manatu Hauora is not forthcoming, the implementation of the project is still required to meet regulatory requirements within the timeframes set out, any shortfall will be 100% council funded;
3. Notes the total budget of \$4,658,857 excludes the fluoridation of Poroti Water Treatment Plant;
4. Approves the Chief Executive to authorise funding agreement; and
5. Approves the award of CON23011 for Water Treatment Plants Fluoridation Construction, to Bellcon Construction Limited for the sum of \$3,866,287.88 exclusive of GST.

Procedural Motion

Moved By Cr Ken Couper

Seconded By Cr Deb Harding

That this item does lie on the table for one month.

On the Procedural Motion being put Cr Simon Reid called for a division:

Recorded	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly			
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie		X	
Cr Marie Olsen		X	
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	11	2	0

The procedural motion was Carried (11 to 2)

7. Public Excluded Business / Rāhui Tangata

Moved By Cr Simon Reid

Seconded By Cr Carol Peters

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 24 August 2023	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Re-appointment of Trustee		
1.3	Land Purchase		
1.4	Additional Information – Deed of Guarantee and Indemnity Exit Request		
1.5	Deed of Guarantee and Indemnity Exit Request		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	To protect the privacy of natural persons including that of a deceased person.	Section 7(2)(a)
1.3	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.4	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)

1.5	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
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Carried

8. Closure of Meeting / Te katinga o te Hui

Cr Ruka closed the meeting with a karakia at 12.59pm.

Confirmed this 26th day of October 2023

His Worship the Mayor Vince Cocurullo (Chairperson)